

However, since no prejudice will flow to the Defendant – and, in fact, Defendant certainly stands to benefit from Plaintiff’s request – the court will grant the Motion and dismiss the matter w/out prejudice.

Disposition

Plaintiff’s Motion is granted.

Matter is dismissed.

Plaintiff shall submit the order.

14. 9:00 AM CASE NUMBER: L25-13162
CASE NAME: BANK OF AMERICA, N.A. VS. GABRIELLE WORLEY
***HEARING ON MOTION IN RE: TO VACATE JUDGMENT**
FILED BY: WORLEY, GABRIELLE J
TENTATIVE RULING:

Background

Defendant filed this Motion on 3/4/26, to vacate the default judgment, citing sections 582.5 and 473(b) of the CCP. No proof of service on the Plaintiff of the Motion has been filed.

Plaintiff, however, filed a Response in opposition on 5/8/26, and filed a proof service indicating mail service on the Defendant on the same day.

Default Judgment was filed 3/3/26.

Defendant has not filed a Reply.

Analysis

In the instant matter, it doesn’t appear that the parties followed service deadlines. Though Plaintiff appears to have filed their Response late (it must be filed and served at least 9 court days before the hearing), it is not clear that Defendant followed notice rules either, since they did not file a proof of service.

Though Defendant has a right to Reply to the Plaintiff’s response, they have not had the appropriate amount of time in which to do so, since the Response was not timely. So, it may be that Defendant intends to Reply but has not had the requisite time to do so; or, the Defendant may not wish to Reply at all.

Thus, the court is left with two options. The parties appear on 5/19/26, at 9am, and waive any notice issues, and the court will hear any further argument on 5/19/26, and render a decision.

Or, the court will simply continue the matter.

If neither party contacts the court by 4:30 pm, on 5/18/26, to indicate they would like to appear on 5/19/26, then the matter will be continued.

Disposition

The matter will be continued.

The court will provide notice to the parties of the next date for motion hearing.